

The Tamil Nadu Home Guards Act, 1963

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State of Tamilnadu- Act

The Tamil Nadu Home Guards Act, 1963

TAMILNADU

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The Tamil Nadu Home Guards Act, 1963

Act 03 of 1963

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The Tamil Nadu Home Guards Act, 1963

Act No. 03 of 1963.

An Act to provide for the constitution of a Home Guard in the state of Tamil Nadu

BE it enacted by the Legislature of the State of Tamil Nadu in the Fourteenth Year of The Republic of India as follows:

1.

Short title, extent and commencement:

(1)

This Act may be called the Tamil Nadu Home Guards Act 1963.

(2)

It extends to the whole of the State of Tamil Nadu.

(3)

It shall come into force at once.

2.

Definitions:

In this Act, unless the context otherwise requires.

(a)

?Member of the Home Guards? means a person who is appointed as such Under Section 4.

(b)

?Government? means the State Government.

3.

Constitution and control of Home Guards:

(1)

The Government may constitute a volunteer body, called the Home Guards, Every member of which shall exercise such powers, discharge such duties and perform such functions, in relation to the maintenance of services Essential to the life of the community, the protection of persons, the security of property and the preservation of public order, as may be assigned to him by provisions of this Act and the rules made there under.

(2)

Without prejudice to the generality of the provisions of sub-section (1) the Government may make rules requiring every member of the Home Guards.

To:

(a)

Serve in aid of the Police Force and generally to help in the maintenance of the security of the State.

(b)

Help the public during any emergency including flood, fire or epidemic.

(c)

Render nursing and first-aid: and

(d)

Facilitate the Maintenance of t transport services and the control of traffic and crowds

(3)

Subject to the overall control of the Inspector General of Police, the Home Guards shall function under the control of the Commissioner of Police in the City of Madras and the Superintendent of Police in a district.

4.

Appointment of members of Home Guards

(1)

Subject to the provision of this Act and the rules made the renders and any person willing to serve as a member of the Home Guards and possessing such qualifications as may be prescribed may be appointed a member of the Home Guards in such manner any by such authority as may be prescribed.

(2)

Every member of the Home Guards shall receive on his appointment certificate in the prescribed form, under the seal of the commissioner of Police in the City of Madras and the Superintendent of Police in district, by virtue of which the member fore said shall be vested with the powers, functions and privileges of a member of the Home Guards.

(3)

Every member of the Home Guards shall receive such training during such hours and for such period as may be prescribed including training in.

(a)

Police duties like control of traffic and crowds;

(b)

Rescue operations, first-aid fire fighting;

(c)

Map reading, field craft, wireless operation and of firearms.

5.

Period of service and discharge:

(1)

A member of the Home Guard shall be required to serve the Government for such period as may be prescribed but any such member may be discharged from Home Guard at any time by such authority on such grounds and subjects to such conditions as may be prescribed.

Provided that it shall not necessary for such authority to disclose the ground of discharge if such authority considers such disclosure to be against the public interest.

(2)

The order of discharge under sub-section (1) shall be final.

6.

Calling out of Home Guards:

The Commissioner of Police, in the City of Madras and the Superintendent of Police in a district may be order at any time call out in the prescribed manner any member of the Home Guards for training or for exercising the powers, discharging the duties and performing the functions assigned to the Home Guards by the provisions of this Act and rules made there under.

7.

Power, Privileges and protection of Home Guards

(1)

A member of the Home Guard when called out by an order under section 6 shall have the same powers, privileges and protection as an officer of the Police appointed under the Madras City Police Act, 1888 (Madras Act III of 1888), or the Madras District Police Act 1859 (Central act XXIV of 1859) as the case may be.

(2)

No prosecution shall be instituted against a member of the Home Guards in respect of anything done purporting to be done by him in the exercise of his powers, or the discharge of his duties, or the performance of his function as a Home Guards

8.

Control by Officers of Police Force

A member of the Home Guard when called out by an order under section 6 in aid of the Police Force, shall be under the control of officers of the Police Force, in such manner and to such manner and such extent as may be prescribed.

9.

Reinstatement in civil-employee of persons called out under section 6

(1)

It shall be the duty of every employer by whom a person called out by an order under section 6 is employed to grant him such leave as may be necessary and to reinstate him in his employment on the termination of the period during which he has been so called out in an occupation and under conditions not less favorable to him than those which would have been applicable to him had he not been so called out.

Provided, that, if the employer refuses to reinstate such person denied his liability to

reinstate such person, or if for any reason

the reinstatement of such person is represented by the employer to be impracticable, either party may refer the matter to the prescribed authority and that authority shall after considering all matters which may be put before it and after making such further inquiry into the matter as may be prescribed pass an order:

a) Exempting the employer from the provision of the section, or

b) Requiring him to re-employ such person on such term as that authority thinks suitable, or

c) Requiring him to pay to such person by way of compensation for failure or inability to re-employ, a sum not exceeding an amount equal to six months remuneration at the rate at which his last remuneration was payable to him by employer.

(2)

If any employer fails to obey the order of any such authority as is referred to in the provision to sub-section (1) he shall be punishable with fine which may extend to one thousand rupees, and the court by which an employer is convicted under this section shall order him (if he has not already been so required by the said authority) to pay to the person whom he has failed to re-employ a sum equal to six months remuneration at the rate at which his last remuneration

was payable to him by the employer, and any amount so required to be paid either by the said authority or by the court shall be recoverable as if it were a fine imposed by such court.

(3)

In any proceeding under this section it shall be a defense for an employer to prove that the person formerly employed did not apply to the employer for reinstatement within a period of two months from the termination of the period during which he was called out by an order under section 6.

(4)

The duty imposed by sub-section(1) upon an employer to grant leave to such persons is referred to in that sub-section or to reinstate him in his employment shall attach to an employer who, before such person is actually called out by an order under section 6, terminates his employment in such circumstances as to indicate an intention to evade the provisions of this Act, until it is proved that the termination takes place, after the issue of an order relating to that person under section 6.

10.

Preservation of certain rights of persons called out under section 6.

When any person called out by an order under section 6 has right under any provident fund or superannuation fund or other scheme for the benefit of employee maintained in connection with the employment he relinquishes, he shall continue during the period for which he has been so called out and if he is reinstated. Until such reinstatement under the provisions of this Act, to have in respect of such fund or scheme such rights as may be prescribed.

11.

Pay and allowances:

(1)

Every member of the Home Guard shall, during the period of training or service in the Home Guard receive from the Government such allowances as may be prescribed.

(2)

Where any such member was in any employment immediately before he is called out for training or service by an order under section 6, the employer shall be liable to pay to him the pay and allowance as if such member had not been so called out.

(3)

If any employer refuses or fails to pay any such member the pay and allowances as provided in sub-section (2) such pay and allowance may, on application by the member to the prescribed authority, be recovered from the employer in such manner as may be prescribed.

12.

Surrender of arms, uniforms, etc.

(1)

Every person who for any reason ceases to be a member of the Home Guard shall within ten days of so ceasing deliver up his certificate of appointment, arms, accoutrements, clothing and other articles supplied to him as a member of the Home Guard to the Commissioner of Police of the City of Madras and the Superintendent of Police, in district in which he is such person and at such place as such Commissioner or Superintendent of Police, may specify.

(2)

The officer of person receiving under sub-section (1) any certificate of appointment, arms accoutrements, clothing and articles shall give a receipt for the same to the person delivering such certificate, arms, accoutrements, clothing and articles.

(3)

Any Magistrate and, for special reason recorded in writing, any police officer not below the rank of a Deputy Commissioner of Police or Assistant or Deputy Superintendent of Police may issue a warrant to search for and seize wherever they may be found the certificate, arms, accoutrements clothing or other articles not delivered up in accordance with the provisions of sub-section (1) Every warrant so issued shall be executed in accordance with provisions of the code of Criminal Procedure , 1898 (Central Act V of 1988), by a Police officer or if the magistrate or the Police officer issuing the warrant so directs by any other person.

(4)

Nothing in this section shall be deemed to apply to any article which under the orders of the Commissioner of Police in

the City of Madras or the Superintendent of Police, in district has become the property of the person to whom it was supplied in accordance with the rules made under this Act.

13.

Suspension or Removal

(1)

The Commissioner of Police in the City of Madras and the Superintendent of Police in a district may by order in writing suspend or remove from the Home Guard any member of the Home Guard under his control

(a)

Who on being called out by an order under section 6 without reasonable cause neglects or refuses

(i)

to obey such order, or

(ii)

to exercise the powers, discharge the duties and perform the functions as a member of the Home Guard, or

(iii)

to obey any lawful order or direction given to him for the exercise of the power, discharge of the duties and performance of the function as a member of the Home Guards, or

(b)

Who is guilty of any breach of discipline or any mis-conduct.

(2)

No order under sub-section (1) shall be passed unless the member of the Home Guard affected by such order is given an opportunity to be heard in his defense

(3)

The suspension or removal of a member of the Home Guard under this section shall be in addition to any penalty to which such member may be liable under any other law for the time being in force.

14.

Appeals

(1)

An appeal against any order or suspension or removal passed under section 13 shall lie to the Inspector General of Police, Tamil Nadu, within thirty days to the date of receipt of such order by the person concerned.

(2)

The decision of the Inspector General of Police in the appeal shall be final

15.

Power to make rules

(1)

The Government may make rules to carry out all or any of the purpose of this Act.

(2)

In particular and without prejudice to the generality of the foregoing power such rules may provide for or regulate the following matters, namely:

(a)

all matters expressly required or allowed by this Act to be prescribed;

(b)

the organization, qualification, appointment, discipline, training, arms, accoutrements and clothing, conditions of service, powers duties and functions of the Home Guard;

(c)

the exercise by any Police officer or any officer of the Home Guards of the Powers conferred by section 6 on the Commissioner of Police in the city of Madras, or the Superintendent of Police concerned a district;

(d)

the exercise of control of officers of the Police over the Home Guard when acting in aid of the Police Force;

(e)

the exercise by a member of the Home Guard of any of the Power exercisable under sub-section (1) of section 7; and

(f)

the constitution of the authority for the purpose of section 9 and the manner in which such authority may conduct inquiry under this Act.

(3)

All rules made under this Act shall, be published in the Fort. St George Gazette and unless they are expressed to come into force on a particular day, shall come into force on the day which they are so published.

(4)

Every rule made under this Act shall, as soon as possible after it is made, be placed on the table of both Houses of the Legislature, and if before the expiry of the session in which it so placed on next session, both Houses agree in making any notification in any such rule or both houses agree that the rule should not be made, the rule shall thereafter have effective only in such modified form or be of no effect , as the case may be , so however that any such modification or annulment shall be without prejudice to the validity of anything previously done under that rule.

16.

Member of the Home Guard toe public servant.

A Member of the Home Guard acting under this Act shall be deemed to a public servant with in the meaning of section of 21 Indian Penal Code (Central Act XLV of 1860)

17.

Removal of disqualification

Not with standing anything to the contrary contained in any other law of the time being in force , a member of the Home Guard shall not be disqualified for being chosen as, or for being member of any local authority by reason only of the fact that he is a member of the Home Guard.

18.

Repeals

The Tamil Nadu Home Guards Act 1948 (Tamilnadu Act of 1984) and the Tamilnadu Home Guard Ordinance, 1963 (Tamilnadu Ordinance 2 of 1963) are here by Repealed.

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